



Notification Waiver Determination

Baupost – McDermott

Acquisition	Baupost Group Securities, L.L.C. (Baupost) applied for a notification waiver in respect of its proposed acquisition of a non-controlling, minority equity position in McDermott International, Ltd (McDermott), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	4 August 2026

Parties to the Acquisition	The acquirer, Baupost, is the nominee entity for The Baupost Group, L.L.C., a private hedge fund headquartered in Boston, USA. It manages a portfolio invested across a range of asset classes, including publicly traded debt and equity securities, private credit, private equity, and real estate investments. Its investments span a range of sectors, including technology, insurance and financial services, industrial distribution, and healthcare. The target, McDermott, established under the laws of Bermuda and headquartered in Houston, Texas, supplies engineering, procurement, fabrication, construction, and installation solutions to the energy industry. McDermott designs and builds end-to-end infrastructure solutions to transport and transform oil and gas into a variety of products. Its technologies, expertise, and solutions, including in relation to the energy transition, are utilised for offshore, subsea, LNG, and downstream energy projects globally. McDermott's customers include national and major integrated oil and gas companies, as well as producers of petrochemicals and electric power. McDermott operates in over 30 countries, including most major energy-producing regions throughout the world, and has more than 30,000 employees.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. There is no horizontal overlap or vertical relationships between Baupost and McDermott (or their connected entities) in Australia.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**